

February 23, 2026

Thomas Keane, M.D., M.B.A.
Assistant Secretary for Technology Policy
National Coordinator for Health IT
U.S. Department of Health and Human Services
7033A, 330 C Street S.W.
Washington, DC 20201

[Submitted electronically via regulations.gov]

Re: Request for Information: Accelerating the Adoption and Use of Artificial Intelligence as Part of Clinical Care

Dear Assistant Secretary Keane:

Joint Commission appreciates the opportunity to comment on the Office of the Deputy Secretary and Assistant Secretary for Technology Policy and Office of the National Coordinator for Health Information Technology (ASTP/ONC) Request for Information: *Accelerating the Adoption and Use of Artificial Intelligence as Part of Clinical Care*.

Founded in 1951, Joint Commission's mission is to *enable and affirm the highest standards of healthcare quality and patient safety for all*. An independent, not-for-profit organization with a global presence, Joint Commission has programs that accredit or certify healthcare organizations and programs in the United States across the continuum of care, including most of the nation's hospitals. A variety of federal and state government regulatory bodies, including the Centers for Medicare and Medicaid Services, recognize and rely upon Joint Commission's findings for Medicare or licensure purposes.

Joint Commission offers the following specific comments on **Question 5: How can HHS best support private sector activities (e.g., accreditation, certification, industry-driven testing, and credentialing) to promote innovative and effective AI use in clinical care?**

As the number of healthcare integrated AI tools continues to proliferate, health systems are using these tools in a variety of ways to enhance the quality of clinical care, such as to diagnose disease earlier, identify patients who may need follow up, and personalize treatment plans. However, these advances bear some amount of risk. The increased reliance on large datasets also increases the possibility of a privacy breach, and algorithms may still yield false outcomes, leading to possible misdiagnosis and, ultimately, patient harm. Currently, there is no systematic mechanism to evaluate adverse outcomes and other critical AI tool monitoring needs. Providing a systematic approach to implementation and evaluation of tools is a critical driver for

accountability and safety within a healthcare organization, allowing agile innovation without hampering the use and integration of AI tools. A healthcare sector framework could also promote learning by establishing best practices for information sharing, including monitoring adverse outcomes.

While the Food and Drug Administration (FDA) has provided oversight on the subset of AI tools falling under the medical device classification, there are a wide array of AI tools that might be in use across a healthcare system, many of which exist outside of FDA's jurisdiction. Other federal agencies could play a role as well. However, federal administrative processes and regulatory burden could stifle innovation and adoption. A few states have introduced regulations around health AI tools. State oversight, though, would mean that AI developers and multi-state healthcare systems will need to navigate 50 possible regulations, which too would hinder innovation. Therefore, other organizations will need to play a role to validate that AI is responsibly deployed at the healthcare delivery level. For example, healthcare organizations will need to have policies to ensure that AI tools are still providing accurate outcomes over time, which may require updates or input from developers to prevent algorithmic drift while still enabling learning AI tools.

Accreditation Organizations (AOs) are well-positioned to play a role in supporting healthcare organizations with developing policies and procedures around the implementation of innovative and effective AI tools in clinical care.

Joint Commission works with 24,000 healthcare organizations across the continuum of care to review policies and procedures covering a range of critical safety areas to guide the safe delivery of healthcare. Over the last several years, we have heard from many of our healthcare organizations who were seeking a framework to implement AI tools and from organizations already using AI tools interested in a framework and a third-party validator to confirm that they incorporated policies to address key patient safety concerns. To help create guideposts, Joint Commission convened two meetings to gather input from across the healthcare field, including patient organizations, community providers, health systems, and health policy experts, to identify key elements of the responsible use of AI in a healthcare framework.

This learning process was invaluable and, ultimately, led to the release of guidance on Responsible Use of AI in Healthcare (RUAIH),¹ which is designed to help healthcare organizations, particularly smaller and rural hospitals, establish clear policies and procedures to use AI tools safely while supporting effective integration into care delivery, including the need for adequate technical and human resources, risk assessment, data management, and ongoing monitoring and updates to ensure safety throughout an algorithmic lifetime.² The guidance

¹ *The Responsible Use of AI in Healthcare (RUAIH)*, JOINT COMMISSION (Sept. 2025), <https://digitalassets.jointcommission.org/api/public/content/dcfcf4f1a0cc45cdb526b3cb034c68c2>.

² Joint Commission has already operationalized some of the key principles identified during the convening as part of its voluntary Responsible Use of Health Data (RUHD™) certification for hospitals and health systems. <https://www.jointcommission.org/en-us/certification/responsible-use-of-health-data>

emphasizes engaging clinicians, patients, and other stakeholders, and ensuring transparency and accountability in third-party partnerships.

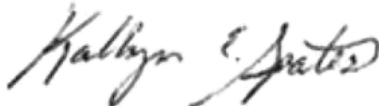
The RUAIH guidance is just the first step to support healthcare organizations. Joint Commission is developing a voluntary certification program that would serve as an external validation that organizations have policies and structures to guide appropriate, responsible use of AI, while serving as a signal to patients and their families that certified healthcare organizations are engaging with new tools to advance care delivery and taking steps to ensure that AI tools support and enhance safe and high-quality care.

An AO's voluntary certification model is an effective way to enable the adoption and implementation of AI in the healthcare field, from administration to bedside, while promoting sensible guardrails that focus on patient safety. Certification is not intended to verify the AI tools themselves, serve as a barrier to AI use, or define how or when AI tools might be used by healthcare providers. Instead, the purpose is to reinforce thoughtful implementation and safe use, similar to the way in which AOs assess policies and procedures to ensure safe imaging practices, but not the MRI technology itself. Additionally, the national reach of Joint Commission promotes a unified approach to responsible AI in healthcare.

Joint Commission would welcome the opportunity to share its learnings with HHS as HHS considers avenues to promote private sector innovation in AI for healthcare, providing updates as Joint Commission's RUAIH voluntary certification is finalized.

Joint Commission would be pleased to answer any questions you may have regarding our comments. If you have any questions, please do not hesitate to contact me or Patrick Ross, Associate Director, Public Policy, at (202) 783-6655 or pross@jointcommission.org.

Sincerely,

A handwritten signature in black ink, appearing to read "Kathryn E. Spates".

Kathryn E. Spates
Executive Vice President, Public Policy & Government Relations